AS TO THE ADMISSIBILITY OF

Application No. 11518/85
by Gandharv Raj CHAUHAN
against the United Kingdom

The European Commission of Human Rights sitting in private on 12 July 1988, the following members being present:

MM. C. A. NØRGAARD, President
J. A. FROWEIN
G. SPERDUTI
E. BUSUTTIL
G. JÖRUNDSSON
A. S. GÖZÜBÜYÜK
A. WEITZEL
H. G. SCHERMERS
H. DANELIUS
G. BATLINER
H. VANDENBERGHE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY

Mr. J. RAYMOND, Deputy Secretary to the Commission.

Having regard to Article 25 (Art. 25) of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 4 August 1984 by Gandharv Raj CHAUHAN against the United Kingdom and registered on 3 May 1985 under file No. 11518/85;

Having regard to:

- the report provided for in Rule 40 of the Rules of Procedure of the Commission;

- the written observations submitted by the respondent Government on 30 April 1987 on the admissibility and merits of the application;

- the parties' oral submissions at the hearing before the Commission on 12 July 1988;

- the Commission's decision of 1 December 1986 to communicate the application to the respondent Government under Rule 42 para. 2 (b);

Having deliberated,

Decides as follows:

THE FACTS

The applicant is a citizen of the United Kingdom born in 1938 and is an electrician by profession. He resides in London. He is represented in the proceedings before the Commission by Messrs. Simons Muirhead and Burton, solicitors, London.

The facts as agreed between the parties may be summarised as follows:

The applicant had been employed as an electrician by the

Ford Motor Company since 1978. The company had, at that time, a union membership agreement which required an employee to be a member of a union. The applicant had previously been a member of the Transport and General Workers' Union (TGWU) since 1976 but his membership had lapsed. He then joined the Electrical, Electronics, Telecommunication and Plumbing Union (EETPU) as required by the union membership agreement at the beginning of his employment with the Ford Motor Company. In April 1980 he allowed his membership of the EETPU to lapse by failing to keep up his subscriptions. From that date he has not been a member of any trade union. However, he continued to work for the Ford Motor Company and it was not until three years later, early in June 1983, that the fact of his lapsed union membership came to light.

The applicant claimed that he was a devout orthodox Hindu belonging to the Radhaswami sect. He explained that this sect divided its religious activities into four stages and that he had progressed to the third stage. He considered that the religious teaching at this stage of his religion did not permit him to be a member of a trade union. The applicant offered to pay to charity a sum equivalent to his union dues.

The applicant was subsequently invited by the Employee Relations Manager to appeal to an independent panel, as provided for under the union membership agreement, in order to explain the reasons for his refusal. He subsequently refused to have recourse to this appeal procedure since he considered that the panel could not be regarded as independent so long as any member of a trade union was represented upon it.

The applicant was subsequently dismissed from his employment on 21 October 1983.

The applicant then filed an application before the Industrial Tribunal. He complained that his dismissal was unfair since he had genuine objections on grounds of conscience justifying his refusal to join a trade union in accordance with Section 58 (4) of the Employment Protection (Consolidation) Act 1978 (as amended).

On 23 January 1984 the Industrial Tribunal rejected the applicant's case, finding that he had not proved a genuine and conscientious objection. Accordingly, his dismissal was fair under the 1978 Act (as amended). The Tribunal was satisfied that the Employee Relations Manager had explored the applicant's stated religious objections to trade union membership and that he was entitled to conclude that the applicant did not have a genuine conscientious objection.

The Tribunal added:

"In order to make a judgment on a man's beliefs and motivations, it is necessary to take account of his actions as well as his words. For our own part, we find it extremely hard to reconcile the applicant's three-year silence with his protestations of conscience."

The applicant appealed against this decision to the Employment Appeals Tribunal. This appeal was rejected on 17 December 1984.

The applicant was advised by his lawyers that an appeal to the Court of Appeal against this decision offered no prospects of success and would involve him in substantial expense.

Relevant Domestic law and practice

The Employment Protection (Consolidation) Act 1978

consolidated the unfair dismissal provisions of previous legislation, notably the Trade Union and Labour Relations Act 1974, the Employment Protection Act 1975 and the Trade Union and Labour Relations (Amendment) Act 1976. Under this legislation dismissal for not being a trade union member was to be regarded as fair save where the employee genuinely objected on grounds of religious belief to being a member of a trade union.

The Employment Act 1980 provided greater protection for employees who refused to join a trade union. Dismissal was to be regarded as unfair for:

(a) employees who genuinely objected on grounds of conscience or other deeply-held personal conviction to being members of any trade union whatsoever or of a particular union;

(b) employees who belonged to the class of employee covered by the closed shop agreement before it took effect and who had at no time subsequently been members of a trade union in accordance with the agreement;

(c) employees working under a closed shop agreement brought into effect after 14 August 1980, but not approved by at least 80% of the emmployees covered by the agreement voting in favour of the agreement in secret ballot;

(d) employees working under a closed shop agreement brought into effect after 14 August 1980 which had been approved by at least 80% of those employees covered by it in a secret ballot in which the employee was entitled to vote if the employee had not at any time since the day on which the ballot was held been a member of the union.

In addition, a Code of Practice was issued with the authority of Parliament and came into effect on 17 December 1980 (subsequently revised in May 1983). It recommended, inter alia, that closed shop agreements should protect basic individual rights, and be applied flexibly and tolerantly and with due regard to the interests of individuals as well as unions and employers. The Code is admissible in evidence, but imposes no legal obligations.

The Employment Act 1982 further increased the protection of union employees working in the closed shop as well as re-enacting the closed shop dismissal provisions of the 1980 Act. In particular, the 1982 Act provides that the dismissal of an employee for not being a member of a trade union, or for refusing to join one, is automatically unfair where the closed shop concerned is not "approved". Up to 31 October 1984 any closed shop agreement which took effect on or before 14 August 1980 counted as "approved". A closed shop agreement which took effect after 14 August 1980 only counts as "approved" if it has been supported in a secret ballot of all employees affected in which 80% or more of those entitled to vote voted in its favour. These were the provisions enforced when the applicant was dismissed on 21 October 1983.

Since 1 November 1984 a closed shop agreement counts as "approved" on a given date only if in the five years preceding that date it has been supported in a secret ballot involving all the employees affected. The required levels of support in the ballot are set out in the 1982 Act.

Where a closed shop agreement is "approved" dismissal for non-membership of a trade union is not automatically fair. The dismissal of certain categories of employee for not being members of a trade union, or for refusing to join one, remains unfair even where the

closed shop agreement is an "approved" one. The protected categories are as follows:

(a) employees who genuinely object on grounds of conscience or other deeply-held personal conviction to being members of any trade union whatsoever or of a particular union;

(b) employees who belonged to the class of employees covered by the closed shop agreement before it took effect and who have at no time subsequently been members of a trade union in accordance with the agreement;

(c) employees who work under an "approved" closed shop agreement which took effect after 14 August 1980, were entitled to vote in the first or only ballot through which the closed shop agreement was approved, and have not since the day when that ballot was held been members of a trade union in accordance with the agreement;

(d) employees who at the time of dismissal either had been found by an industrial tribunal to have been unreasonably excluded or expelled from the trade union of which membership was required under the closed shop agreement or who have a complaint of unreasonable exclusion or expulsion by that union lodged with an industrial tribunal under section 4 of the 1980 Act;

(e) employees who have qualifications relating to their job which make them subject to a written code of conduct and either have been expelled from the trade union of which membership is required because they refused to strike or take other industrial action on the grounds that this would have breached the code of conduct; or have refused to belong to the union concerned on the grounds that membership would have required them to take industrial action in breach of the code.

If an employee is unfairly dismissed from either an "approved" or an "unapproved" closed shop for not being a member of a trade union, or for refusing to join one, an industrial tribunal can order the employer to re-employ the employee concerned where this is practicable or to pay him compensation. As a result of the 1982 Act, compensation in such cases has been set at substantially higher levels than in most other cases of unfair dismissal so as to act as a deterrent.

COMPLAINTS

The applicant complains that the dismissal from his employment was due exclusively to his refusal to join a trade union because of his religious objections. He alleges that his dismissal was in breach of Article 11 para. 1 (Art. 11-1) of the Convention.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 4 August 1984 and registered on 3 May 1985. In a decision dated 1 December 1986 the Commission decided that notice should be given to the respondent Government of the application and that the Government should be invited to submit observations on the admissibility and merits of the application insofar as it raised issues under Article 11 (Art. 11) of the Convention. These observations were submitted on 30 April 1987. The applicant's observations in reply were received on 17 November 1987. The applicant

was granted legal aid by decision of the President of the Commission dated 20 August 1987.

The Commission next considered the application on 8 March 1988 and decided to invite the parties to a joint hearing on the admissibility and merits of the case insofar as it raised issues under Articles 9, 11 and 14 (Art. 9, Art. 11, Art. 14) of the Convention.

The hearing before the Commission was held on 12 July 1988.

The Parties were represented as follows:

Respondent Government

Mr. M. C. Wood, Foreign and Commonwealth Office, Agent

Mr. N. Bratza Q.C., Counsel

Mr. R. Baker, Department of Employment, Adviser

Mr. R. Timm, Department of Employment, Adviser

Applicant

Mr. G. Robertson, Q.C., Counsel

Mr. B. Simons)
) Solicitors, Simons, Muirhead & Burton
Mr. R. Mireskandari)

SUBMISSIONS OF THE PARTIES

The respondent Government

Article 11 in conjunction with Article 9 (Art. 11 + Art. 9) of the Convention

In the Government's submission where the complaint made is not of direct interference by the State of the rights guaranteed by the Convention but of a failure through its legal system to secure the right against interference by the action of others, the Convention requires the striking of a balance between the competing interests of the individual and of society as a whole. A search for this balance is inherent in the whole of the Convention (Eur. Court H.R., Sporrong and Lönnroth judgment of 22 September 1980, Series A no. 52, para. 69).

In marked contrast to the position of the applicants in the case of Young, James and Webster (Eur. Court H.R., judgment of 13 August 1981, Series A no. 44) the union membership, or closed shop, agreement within the Ford Motor Company was in full effect at the time when the applicant joined that firm. It is also clear that, for a period of over two years, the applicant in fact belonged to a trade union, first the TGWU and thereafter the EETPU.

Quite apart from the personal position of the applicant, the applicable law at the time of the present applicant's dismissal was substantially different from that which was in effect at the time of the dismissal of the applicants in the case of Young, James and Webster and which was found by the Court to provide inadequate protection for the rights and freedoms guaranteed by Article 11 (Art. 11) of the Convention. In the submission of the Government, the provisions of the 1980 and 1982 Acts, designed as they were to

increase the protection afforded to individual employees against dismissal for refusing to join a union, strike a fair balance between the rights of the individual and the right of other employees to organise through the closed shop system. In contrast to the position under the 1974 and 1976 Acts, which were the subject of the Court's judgment in the case of Young, James and Webster, it is submitted that the form of compulsion which is permitted under the 1982 Act and to which the applicant was subjected does not strike at the very substance of the freedom guaranteed by Article 11 para. 1 (Art. 11-1) read on its own or in the light of Articles 9 and 10 (Art. 9, Art. 10) of the Convention and did not give rise to a breach of that Article in the circumstances of his case.

The Government further contest that Article 11 (Art. 11) confers a negative right. The Court in the Young, James and Webster case expressly proceeded on the assumption that the negative aspect was not protected on the same footing as the positive aspect and that compulsion to join a particular union was not automatically contrary to this provision. The Court emphasised in that case that the dismissal stemmed from a closed shop agreement which was concluded after the three applicants were employed by British Rail. Such compulsion was imposed on the applicants unilaterally and was not a condition of their employment when they first applied for the job. In the present case the applicant accepted the requirement that he join a union as a condition of his employment by Ford Motor Company from the outset. This was an essential part of his contract of employment which he accepted voluntarily.

Moreover the applicant had an opportunity to submit his case to an internal tribunal which could have granted him an exception on the basis of his religious views. However the applicant withdrew his appeal because he objected to the presence of a union member. The Government do not accept that the presence of a union member in a tribunal of three persons, with an independent chairman, is a good reason for abandoning such an appeal.

Before the Industrial Tribunal the applicant sought to invoke the provisions of Section 58 (4) of the 1978 Act (as amended) submitting that he had genuine objections to union membership on the grounds of conscience or other deeply-held personal convictions. The applicant was represented by counsel before the Tribunal and it was open to him to support his case by both written and oral evidence. In the result, the Tribunal concluded from the material before them that the applicant had not established that he had any genuine objection to union membership on grounds of conscience or other deeply-held personal conviction. In so holding, the Tribunal placed particular reliance on the fact that the applicant had not asserted any objections to union membership until challenged some three years after he had allowed his membership to lapse.

In reviewing the decisions of the Industrial Tribunal and the Employment Appeal Tribunal the Commission should limit itself to the question whether such a determination was unfair, perverse, arbitrary or otherwise a denial of the applicants rights (see, mutatis mutandis, No 8378/78, Dec of 14.5.80, D.R. 20 p. 168). However, in his application to the Commission, no complaint is made that the applicant was given an unfair hearing before either the Industrial Tribunal or the Employment Appeal Tribunal or that the decision reached by either of the Tribunals was arbitrary. Nor is it suggested that the decisions resulted from a misinterpretation or misapplication of Section 58 (4) of the 1978 Act (as amended) or that no Tribunal properly directing itself could reasonably have concluded that the applicant had no genuine objections to union membership on grounds of conscience or other deeply-held personal convictions.

The Government submit that in such circumstances neither the relevant provisions of domestic law nor the application of those

provisions by the domestic tribunals upset the fair balance required by Article 11 para. 1 (Art. 11-1) of the Convention.

Article 14 (Art. 14) of the Convention

The Government submit that the applicant was given exactly the same treatment as other persons including members of other religions in a comparable situation. Neither the statutory provisions in force nor the Industrial Tribunal or Employment Appeal Tribunal treated the applicant in any way unfairly or less favourably than an applicant of a different religious persuasion. This complaint should therefore be rejected as manifestly ill-founded.

The Applicant

Article 11 in conjunction with Article 9 (Art. 11 + Art. 9) of the Convention

The present application is made on the basis that United Kingdom domestic law and practice does not afford the applicant protection of his rights and freedoms under Article 11 in conjunction with Article 9 (Art. 11 + Art. 9) of the Convention. In particular, protection against unfair dismissal does not extend to a situation where:

(1) the applicant is a devout orthodox Hindu;

(2) the applicant refuses to join a trade union.

The applicant points out that if the union membership agreement at his place of work had come into effect after 14 August 1980 he would have had the opportunity to vote on its application and, moreover, would have been protected from unfair dismissal on the ground of non-membership if he had not been a member of a trade union since the required ballot. The applicant submits that in making this provision the United Kingdom has impliedly recognised that the legal position for union membership agreements made before 14 August 1980 is in breach of the principle of freedom of association. Since the union membership agreement at the applicant's former place of work came into effect before 14 August 1980 he has been denied the opportunity of wider protection from dismissal on the grounds of non-membership of a trade union.

The applicant states that, although he knew the existence of, and understood the provisions of, the union membership agreement when he accepted employment with the Ford Motor Company, this cannot be taken to imply that he either agreed with it, or that, by taking up employment, he thereby waived any right to leave the union and seek protection from dismissal at a later date.

As regards questions of fact, the applicant makes the following points:

- that in his application to the Commission the applicant stated that when he began his employment he joined the union under duress as there was no legislation prevailing at that time which protected those who did not wish to be a member of a trade union;

- that there was at no time any legislative provision which required him to articulate his conscientious objections to union membership either when the membership lapsed in April 1980 or in the period up until June 1983;

- that the religious involvement of the applicant became more intense between the years 1978 to 1983. The fact that the applicant remained a union member for two years from 1978 until 1980 does not imply that he acquiesced to union membership since the consequences of

renouncing his membership were likely to involve his dismissal. At the time of seeking employment in March 1978 his religious beliefs made him reluctant to join a trade union but they were not so strong as to amount to an overriding conscientious objection to membership. However by April 1980 he had progressed to a higher stage in his religious feeling and believed that his religious views were utterly incompatible with trade union membership. These views stressed non-violence, commitment to truth and freedom from any form of extra-legal compulsion. The applicant thus considered himself under an absolute duty never to be associated with any false statement through membership of a group or to be associated with any group that espouses violent actions and, finally, not to be a party to duress over others or to allow himself to be the victim of compulsion;

- that the reason the applicant withdrew his appeal to the independent panel was on the grounds that the panel could not be regarded as independent since it included a trade union representative. Where a member is being judged by a trade union member there must be a reasonable fear of bias when one is submitting that trade union membership may involve departure from the truth and association with acts of violence;

- the applicant remained silent about his decision to leave the union because this was an action taken from private beliefs and because he would have suffered immediate victimisation and job loss.

The applicant submits that the failure on the part of the United Kingdom to protect the applicant against dismissal on the grounds of his refusal to join a trade union is a breach of Article 11 para. 1 (Art. 11-1) of the Convention. Article 11 (Art. 11) confers a negative right not to join a trade union even where a union membership agreement is in force. The freedom to form or join a trade union does not mean that one is obliged to do so. Only that one is permitted to do so.

Accordingly, the freedom to join a trade union must encompass a freedom not to join. A person cannot be free to do something unless he or she is free not to do it. Since freedom presupposes an element of choice, a regime of compulsion is incompatible with the very idea of freedom. The closed shop as applied in the circumstances of the applicant's case afforded him no real choice whether to join a union or not, since his only other option entailed a loss of livelihood.

In this connection, the tenor of the judgment of the Court in the case of Young, James and Webster favours such a negative freedom. Thus the majority stated that "the situation facing the applicants clearly runs counter to the concept of freedom of association in its negative sense ..." (loc. cit., para. 55). Moreover, the majority reasoned that a threat of dismissal (including loss of livelihood) is a "most serious form of compulsion - striking at the very substance of the freedom guaranteed by Article 11 (Art. 11)" (loc. cit., para. 57). Such reasoning would make little sense if it was not based on a presupposition that Article 11 (Art. 11) protects non-membership as well as membership of a union or other association. The compulsion suffered by the applicant involved a threat to extinguish his livelihood at a time of high unemployment. In reality, the situation of the applicant was the same as that faced by the applicants Young, James and Webster.

The Court in Young, James and Webster also put much emphasis on the concept of freedom of choice. In particular it held that:

"An individual does not enjoy the right of freedom of association if in reality the freeedom of action or choice which remains available to him is either non-existent or so reduced as to be of no practical value" (loc. cit., para. 56).

It is submitted that the applicant's choice, because of his religious beliefs and because of the nature of the union membership agreement, was so reduced as to be of no practical value. This choice was further reduced by the fact that the only alternative open to the applicant involved loss of livelihood. The applicant accepts that under present United Kingdom law protection is afforded to persons not wishing to be members of a trade union if, inter alia, their objection is based on conscience or other deeply held personal conviction. However, protection under present legislation does not extend to the situation in which the applicant finds himself, namely an Orthodox Hindu who refuses to be in a trade union.

In respect of the respondent Government's submission that the applicant should be regarded as having consented to join the union since he was aware that this was a term of his contract of employment, the applicant points out that the Court has indicated in the Young James and Webster case that there might be compulsion even in this situation (loc. cit., para. 53). Furthermore the applicant joined the union under duress in a situation where there was limited statutory protection for persons not wishing to join trade unions.

Since the right not to join a trade union has been recognised the right to leave a union, after the contract of employment is made without the consequent loss of a job, must follow. If the principle of freedom of association is infringed by dismissal from employment on the grounds of non-membership of a union it can make no logical difference whether the union membership agreement on which dismissals are based was concluded before or after the contract. The mere fact that someone has exercised his right of association does not mean that he should forever be bound by it.

The applicant contends that the "balancing" approach proposed by the respondent Government is erroneous. Once there is an infringement of Article 11 para. 1 (Art. 11-1) there is no longer any balance to be struck between competing interests. Unless the Government can bring themselves within the narrowly interpreted exceptions in Article 11 para. 2 (Art.11-2) - which has not been argued in this case - the applicant must succeed.

As regards Article 11 in conjunction with Article 9 (Art.11 + Art. 9) the applicant submits firstly that the requirement that he join a trade union irrespective of any religious beliefs he might hold constitutes a breach of these provisions read together. A rule that obliges an individual to act contrary to the teachings of his religion amounts to an infringement of religious freedom.

Secondly Article 9 (Art. 9) of the Convention extends to the freedom to change belief. The applicant changed his belief when he progressed to a higher stage of his faith. It was for this reason that he allowed his membership to lapse in 1980. The applicant submits, in this respect, that a system which allows his dismissal for leaving a trade union unless he can discharge the burden of proving his religious convictions is in breach of these provisions. It is a violation of religious freedom to be required, on pain of having the dismissal upheld, to prove the genuineness of ones private religious views particularly if one is a member of a little-understood religious sect which imposes higher duties in the course of religious advancement. Furthermore it is incompatible with the protection of intimate spiritual beliefs under Article 9 (Art. 9) that an individual should be required to expose elders of his sect or church to cross-examination in public about innermost religious feelings, with the risk of being held up to ridicule, as a pre-condition of protecting his freedom of association.

The applicant submits that, after providing an indication of membership of his religion and of the contents of his religious belief in the form of the Ordinances of Manu, the burden of proving that the

belief is not a genuine one ought to have been borne by the employer.

In the circumstances of the case it is submitted that the law with regard to unfair dismissal and its application by domestic tribunals in the present case breached Article 11 (Art. 11) of the Convention, considered alone or in conjunction with Article 9 (Art. 9) of the Convention.

Article 14 (Art. 14) of the Convention

The applicant further submits that he has suffered discrimination in the enjoyment of his rights under Articles 9 and 11 (Art. 9, Art. 11) contrary to Article 14 (Art. 14) of the Convention.

Those who hold religious opinions which preclude them from joining trade unions are placed under two discriminatory burdens. First they are subjected to duress and pressure to compromise their religious faith. Secondly those who are members of little-understood religious faiths, such as the applicant, bear a much heavier burden of explanation and proof of their creed than members of more traditional religions whose views are well understood by tribunals.

THE LAW

The applicant, who was dismissed from his employment because of his refusal to rejoin a trade union, submits that union membership was incompatible with his deeply-held religious beliefs. He complains under Articles 9, 11 and 14 (Art. 9, Art. 11, Art. 14) of the Convention.

Article 11 para. 1 (Art. 11-1) of the Convention reads as follows:

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and join trade unions for the protection of his interests."

Article 9 para. 1 (Art. 9-1) of the Convention reads as follows:

"1. Everyone has the right to freedom of thought, conscience and religion; this right includes freedom to change his religion or belief and freedom, either alone or in community with others and in public or private, to manifest his religion or belief, in worship, teaching, practice and observance."

Article 14 (Art. 14) of the Convention reads as follows:

"The enjoyment of the rights and freedoms set forth in this Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status."

The applicant first submits that Article 11 para. 1 (Art. 11-1) contains a general negative right to choose not to be a member of a trade union. He points out that although he knew of the existence of a union membership agreement when he accepted employment with the Ford Motor Company, this cannot be taken to apply that he either agreed with it, or that, by taking up employment, he thereby waived any right to leave the union subsequently. He further complains of a breach of Article 11 read in conjunction with Article 9 (Art. 11 + Art. 9) since the requirement to join a trade union is incompatible with his religious beliefs. The applicant explains that he is a devote orthodox Hindu who belongs to the Radhaswami sect and whose religious beliefs had progressed to a higher stage when he allowed his union membership to lapse in 1980. These religious beliefs involved a rejection of the use of

violence, a deep attachment to the truth and freedom from duress. In particular, he complains that the requirement under the law of the United Kingdom, that he should prove the genuineness of his private religious beliefs and expose the elders of his sect to public cross-examination concerning the intimate details of his creed, constitutes a breach of Articles 9 and 11 (Art. 9, Art. 11) of the Convention read together.

Finally, the applicant complains that he was a victim of discrimination in the enjoyment of his rights under Articles 9 and 11 (Art. 9, Art. 11) of the Convention in that firstly he was required to join a union irrespective of his religious beliefs and that he was required to bear a heavier burden of proof before the Industrial Tribunal than other more traditional faiths.

The respondent Government submit that the applicant accepted voluntarily to join a trade union on taking up employment with the Ford Motor Company. They also point out that the applicant was given full opportunity to establish the genuineness of his beliefs and was represented by counsel both before the Industrial Tribunal and the Employment Appeal Tribunal. These bodies concluded on the basis of the evidence before them that the applicant had not established that he had any genuine objection to union membership on grounds of conscience or other deeply held personal convictions. There is no indication that these decisions were perverse or arbitrary or otherwise a denial of the applicant's rights under the Convention. The Government contend, with reference to the case of Young, James and Webster (Eur. Court H.R., judgment of 13 August 1981, Series A no. 44), that Article 11 (Art. 11) does not guarantee a general negative freedom not to belong to a trade union. Finally, the Government maintain that the applicant has not substantiated his complaint of discrimination and was treated in the same way as a member of any other religion in a comparable situation.

The Commission considers, in the light of the parties' submissions, that the application as a whole raises complex issues of law and fact under the Convention, the determination of which depend on an examination of the merits of the application.

It concludes, therefore, that the application cannot be regarded as manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention and no other ground for declaring it inadmissible has been established.

For these reasons, the Commission

DECLARES THE APPLICATION ADMISSIBLE
without prejudging the merits of the case

Deputy Secretary to the Commission — President of the Commission

(J. RAYMOND) — (C.A. NØRGAARD)